NATIONAL COMPANY LAW TRIBUNAL
GUWAHATI BENCH
GUWAHATI

CP (CAA)/11/GB/2022
In CA (CAA) NO. 09/GB/2022

Coram:
Hon'ble Shri Deep Chandra Joshi Member (J): Hearing through
Hon'ble Shri Prasanta Kumar Mohanty, Member (T): Video Conference

ATTENDANCE-CUM- ORDER SHEET OF THE HEARING OF GUWAHATI BENCH OF THE NATIONAL COMPANY LAW TRIBUNAL ON 31.03.2023.

In the matter of:
Arrow Alloys Pvt. Ltd and 9 Others.

(Transferor Companies)

And
KCL Estates Pvt. Ltd.

(Transferee Company)

Section: Under Section 230 to 232 of Companies Act, 2013

S. NO.	NAME (CAPITAL LETTERS)	DESIGNATION	REPRESENTATION	SIGNATURE
1.	NONE	-	Petitioners	Present in Video Conference

ORDER

The Applicant is represented through respective Learned Counsel (s).

The case is fixed for pronouncement of order.

The Order is pronounced in the open court, Through Video Conferencing vide separate sheet.

Sd/-

(Prasanta Kumar Mohanty)
Member (Technical)

Sd/-

(Deep Chandra Joshi)
Member (Judicial)

NATIONAL COMPANY LAW TRIBUNAL
GUWAHATI BENCH
GUWAHATI

CP (CAA)/11/GB/2022
In CA (CAA) No. 09/GB/2022

Coram:
Hon'ble Shri Deep Chandra Joshi, Member (J) : Hearing through
Hon'ble Shri Prasanta Kumar Mohanty, Member (T): Video Conferencing

Under Section 230-232 of Companies Act, 2013

In the matter of:

ARROW ALLOYS PRIVATE LIMITED
A Private Limited Company incorporated under the provisions
Of the Companies Act, 1956 (CIN U27101AS1993PTC004045)
And having Registered Office at Lohia House 2nd Floor, M G Road
Fancy Bazar Guwahati, Kamrup-781001

... **Transferor Company No. 1**

AND

BEE KAY BREVERAGES PRIVATE LIMITED
A Private Limited Company incorporated under the provisions
Of the Companies Act, 1956 (CIN U15543AS2000PTC006347)
And having Registered Office at Lohia House, M.G Road
Fancy Bazar Guwahati, Kamrup-781001.

... **Transferor Company No. 2**

AND

B R DEVELOPERS PRIVATE LIMITED
A Private Limited Company incorporated under the provisions
Of the Companies Act, 1956 (CIN U45201AS2008PTC008562)
And having Registered Office at SBBJ Building, 3rd Floor
S.R.C.B Road, Fancy Bazar Guwahati, Kamrup-781001.

...Transferor Company No. 3

AND

KCL DEVELOPERS PRIVATE LIMITED
A Private Limited Company incorporated under the provisions
Of the Companies Act, 1956 (CIN U45201AS2008PTC008572)
And having Registered Office at 2nd Floor, Lohia House, M.G Road
Fancy Bazar, Guwahati, Kamrup-781001.

...Transferor Company No. 4

AND

KCL PROPERTIES PRIVATE LIMITED
A Private Limited Company incorporated under the provisions
Of the Companies Act, 1956 (CIN U70101AS2010PTC010210)
And having Registered Office at SBBJ Building, 3rd Floor
S.R.C.B Road, Fancy Bazar Guwahati, Kamrup-781001.

... Transferor Company No. 5

AND

MOTHER CARE HOSPITAL PRIVATE LIMITED
A Private Limited Company incorporated under the provisions
Of the Companies Act, 1956 (CIN U85110AS2003PTC007151)
And having Registered Office at Lohia House 2nd Floor M.G Road
Fancy Bazar, Guwahati, Kamrup-781001.

... Transferor Company No. 6

AND

RAHUL FINANCIAL SERVICES PRIVATE LIMITED
A Private Limited Company incorporated under the provisions
Of the Companies Act, 1956 (CIN U67120AS1993PTC004007)
And having Registered Office at Subham Velocity, 2nd Floor Honu
Ram Boro Path, G S Road, Guwahati Kamrup- 781005.

... Transferor Company No. 7

AND

RAINBOW ISPAT PRIVATE LIMITED
A Private Limited Company incorporated under the provisions
Of the Companies Act, 1956 (CIN U27100AS2008PTC008610)
And having Registered Office at 2nd Floor, Lohia House,
M.G Road, Fancy Bazar Guwahati Kamrup- 781001.

... Transferor Company No. 8

AND

SHUBAM PLANNERS PRIVATE LIMITED
A Private Limited Company incorporated under the provisions
Of the Companies Act, 1956 (CIN U45400WB2007PTC115298)
And having Registered Office at Subham Velocity, 2nd Floor Honu
Ram Boro Path, G S Road, Guwahati Kamrup- 781005.

... Transferor Company No. 9

AND

SBR DEVELOPERS PRIVATE LIMITED
A Private Limited Company incorporated under the provisions
Of the Companies Act, 1956 (CIN U70101AS2003PTC007191)
And having Registered Office at SBBJ Building, 3rd Floor
S.R.C.B Road, Fancy Bazar Guwahati, Kamrup-781001.

... Transferor Company No. 10

WITH

KCL ESTATES PRIVATE LIMITED
A Private Limited Company incorporated under the provisions
Of the Companies Act, 1956 (CIN U70101AS1998PTC005556)
And having Registered Office at Lohia House, M.G Road
Fancy Bazar, Guwahati -781001.

.... Transferee Company

Order delivered on 31.03.2023

ORDER
[Per: Shri Prasanta Kumar Mohanty, Member (Technical)]

1. This Company Petition has been filed by the Applicant Companies under Sections 230 to 232 of the Companies Act, 2013, seeking the following reliefs:

i. The said Scheme of Amalgamation, be sanctioned by the Hon'ble National Company Law Tribunal, Guwahati Bench to be binding on all the Equity Shareholders of the petitioners companies and all concerned with effect from 1st April, 2021.

ii. All the assets and properties and interest of the Transferor Companies be transferred without any further act or deed to Transferee Company with all estate interest of the Transferor Company pursuant to Section 232 read with Section 230 of the Companies Act, 2013.

iii. All the liabilities and duties of the Transferor Companies be transferred without further act or deed to Transferee Company and shall become liabilities and duties of Transferee Company pursuant to Section 232 read with Section 230 of the Companies Act, 2013;

iv. All employees of the Transferor Companies to be transferred to the Transferee Company;

v. All proceedings and/or suit and/or appeals now pending by or against the Transferor Companies shall be continued by or against Transferee Company;

vi. Leave be granted to the petitioners to file Schedule of Assets of the Transferor Companies within such time as this Hon'ble Bench may direct;

vii. Notice of this application be served upon the

a. The Central Government through Regional Director, North Eastern Region, Ministry of Corporate Affairs, Guwahati;
b. Registrar of Companies, Assam;
c. Official Liquidator, High Court, Guwahati;
d. Income Tax Department having jurisdiction over the Petitioner Companies along with the Chief Commissioner of

Income tax together with the Copy of the Scheme of Amalgamation and statement as required under Section 232 read with Section 230 of the Companies Act, 2013.

viii. Joint Notice of hearing to be advertised in "North East Time" in English Edition and in "Amar Asom" in Assamese Edition or any other newspaper as deem fit and proper.

ix. Order be given to file certified copy of the order to be passed herein with the Registrar of Companies within 30 days from the receipt of such order;

x. The Transferee Company to issue and allot shares to the shareholders of the Transferor Companies post this amalgamation;

xi. The Official Liquidator attached to this Hon'ble National Company Law Tribunal, Guwahati Bench be directed to file a report under the applicable provisions of the Companies Act, 2013 in respect of the Transferor Companies within such time as this Hon'ble Bench may direct.

xii. The Official Liquidator be directed to serve a copy of such report to be filed by him on the Authorized Representatives of the Petitioner Companies immediately upon the filing the report with the Tribunal;

xiii. Dissolution without winding up of the Transferor Companies;

xiv. Post dissolution of the transferor companies, the fee paid by the transferor companies on their Authorized Share Capital be set off against the fee payable by the transferee company on its authorized share capital subsequent to the amalgamation;

xv. Such or other order or orders be made and/or directions be given as to this Hon'ble Tribunal may deem fit and proper in terms of the provisions of section 230 and 232 of the Companies Act, 2013 read with companies (Companies Arrangement and amalgamation) Rules, 2016.

2. The registered offices of the Transferor Companies and Transferee Company are situated in the State of Assam, within the jurisdiction of this Bench.

3. From the records, it is seen that the first motion application seeking various directions was filed before this Tribunal vide CA (CAA) No. 9/GB/2022 and based on such joint application moved under Section 230-232 of the Companies Act, 2013, directions were issued by this Tribunal, wherein the meetings of Equity Shareholders of the Transferor Companies and the Transferee Company was dispensed with vide Order dated 28.07.2022. And the meeting of the Creditors of the Transferor Companies as well as the Transferee Company was dispensed with.

4. The Petitioner submits that:

4.1 In compliance to the order passed by the Hon'ble Guwahati Bench of the Tribunal dated, 28.07.2022 in Company Application No**. C.A. (CAA)/9/GB/2022** served Notice in Form CAA 3 upon

a. The Central Government through Regional Director, North Eastern Region, Ministry of Corporate Affairs, Guwahati;
b. Registrar of Companies, Assam;
c. Official Liquidator, High Court, Guwahati;
d. Income Tax Department having jurisdiction over the Petitioner Companies along with the Chief Commissioner of Income tax together with the Copy of the Scheme of Amalgamation and statement as required under Section 232 read with Section 230 of the Companies Act, 2013. The affidavit of Service evidencing the Compliance has been annexed.

5. Thereafter, the Petitioner Companies filed a second motion joint petition before this Tribunal within the time prescribed under law.

6. Now this Petition is coming up for approval of the scheme as well as for other consequential directions in terms of the provisions of Section 230-232 of the Companies Act, 2013 read with the attendant Rules, i.e., Companies

(Compromise, Arrangement and Amalgamation) Rules, 2016 and it is now hereby ordered as follows:

i. The date of hearing of the Petition filed by the Petitioner Companies for the approval of the Scheme is fixed on **15.06.2023**.

ii. The Regional Director, North Eastern Region, Ministry of Corporate Affairs at Guwahati have submitted its report dated 27.02.2023, making certain observations, the Petitioner Companies are hereby directed to comply with the same.

iii. Notice of the hearing shall be advertised in two Newspapers- **"North East Time" in English and "Amar Asom"** in vernacular language, having wide circulation in Assam, not less than thirty days before the aforesaid date fixed for the hearing.

iv. In addition to the above public notices, the Petitioner Company shall serve the notice of the Petition on the following Authorities, namely, Income Tax Authorities Concerned (indicating the respective PAN Nos.), ROC NER Guwahati, Official Liquidator and Regional Director as well as other Sectoral Regulators or authorities, which may govern the working of the Company in the Scheme, at least thirty days before the date fixed for hearing of the above Petition.

v. Further, notices shall also be served to Objector(s) or the representative(s) as contemplated under Sub-section (4) of Section 230 of the Companies Act, 2013 who may have made representations and who have desired to be heard directly or through their representatives, along with a copy of the Petition and the extracts filed therewith, at least fifteen days before the date fixed for hearing.

vi. The Petitioner Companies shall, at least seven days before the date of hearing of the Petition, file an affidavit of service concerning said publication effected as well as service of notice on the authorities mentioned above including the Sectoral Regulator(s) as well as to Objectors, if any.

vii. Objections, if any, to the Scheme, contemplated by the Authorities to whom notice has been given, may be filed on or before the date of

hearing fixed herein, failing which it may be considered by this Tribunal that there is no objection on the part of the Authorities to the approval of the Scheme, by this Tribunal, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and Regulations/Rules framed thereunder.

viii. The Petitioner Companies shall comply with the proviso to Sub-Section (7) of Section 230 as may be applicable under the circumstances on or before the date fixed for hearing by filing a certificate of the Companies' Auditor.

7. The Registry shall also report before the date fixed as to whether any objection has been received to the proposed 'Scheme'.

Sd/-

(Prasanta Kumar Mohanty)
Member (Technical)

Sd/-

(Deep Chandra Joshi)
Member (Judicial)